

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Morgan Galloway	Team: Squad #08	CCRB Case #: 201707031	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 08/25/2017 7:15 PM	Location of Incident: East 161st Street and Sheridan Avenue	18 Mo. SOL 2/25/2019	Precinct: 47		
Date/Time CV Reported Fri, 08/25/2017 7:52 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/25/2017 7:52 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Manuel Monegro	27085	948201	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Reuben Antwi	25102	948300	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Manuel Monegro	Abuse: Police Officer Manuel Monegro threatened to arrest § 87(2)(b)	A . Unfounded
B . POM Manuel Monegro	Discourtesy: Manuel Monegro spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Manuel Monegro	Abuse: Police Officer Manuel Monegro threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Manuel Monegro	Off. Language: Manuel Monegro made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	D . Unsubstantiated

Case Summary

On August 25, 2017, at approximately 7:15 p.m., § 87(2)(b) was following an ambulance that was transporting his father to a hospital § 87(2)(b). Police Officer Manuel Monegro and his partner, Police Officer Reuben Antwi, were on Yankee Stadium detail, posted at the intersection of East 161st Street and Sheridan Avenue in the Bronx to block non-essential traffic from entering the tunnel. § 87(2)(b) tried to follow the ambulance past the officers' barricade, but was told he could not by PO Antwi. § 87(2)(b)

§ 87(2)(b) PO Monegro was operating the patrol vehicle, and both officers followed him into the tunnel. Once they stopped him, PO Antwi explained to § 87(2)(b) that he would have to turn around because he did not have identification with him that could prove he was § 87(2)(b). § 87(2)(b) alleges that PO Monegro interjected, "You better make a U turn before it becomes a problem." (**Allegation A**) § 87(2)(b) turned around, and while waiting at the red light called § 87(2)(b) to tell him what was going on. He alleges that PO Monegro then got out of the vehicle, puffed out his chest, and said, "Oh you is talking all this shit," "Stop talking all that shit and get out. You're so pussy," and, "Get out or you're gonna see what happens." (**Allegations B-D**) After 3-5 minutes of both men yelling at each other, § 87(2)(b) s brother, § 87(2)(b) calmed him down, and he drove away. No summons was issued, and there is no video of the incident.

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] refused mediation [§ 87(2)(b)].
- As of October 30, 2017, no Notice of Claim had been filed in regards to this incident (BR 06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b) (BR 01)
- PO Monegro has been a member of the NYPD for 8 years, § 87(2)(b)

Findings and Recommendations

Allegation A: Police Officer Manuel Monegro threatened to arrest § 87(2)(b)

It is undisputed that while following an ambulance transporting his father, § 87(2)(b) attempted to bypass the barrier on East 161st Street where PO Manuel Monegro and his partner, PO Reuben Antwi, were posted. It is also undisputed that after being told that he could not pass, § 87(2)(b) went through anyway. In his in-person statement, § 87(2)(b) said that after the officers caught up with him in the tunnel, he was explaining to PO Antwi that he is § 87(2)(b) but forgot his identification in the chaos of his

father's emergency (BR 02). § 87(2)(b) said PO Antwi remained polite throughout their interaction. While talking to PO Antwi, § 87(2)(b) said that PO Monegro interjected and said, "You better make a U turn before it becomes a problem." § 87(2)(b) interpreted this as PO Monegro threatening to arrest him. § 87(2)(b) could not recall whether PO Monegro threatened to arrest his brother (BR 03). § 87(2)(b) said that PO Antwi told his brother that he would have to head back toward Sheridan Avenue.

In his interview, PO Antwi recounted that he told § 87(2)(b) that if he did not turn his car around he would "end up someplace else." (BR 04) By this, PO Antwi was suggesting that he would arrest § 87(2)(b) for failing to comply with the law or obstruction governmental administration. PO Antwi did not hear PO Monegro tell § 87(2)(b) that he would be arrested.

PO Monegro said he did not speak to § 87(2)(b) until after he had executed the U turn and was waiting at the Sheridan Avenue intersection traffic light (BR 05). He denied threatening § 87(2)(b) with arrest. He recalled saying, "How are we gonna do this?" by which he meant whether § 87(2)(b) would leave the scene or take a summons for blocking traffic and playing on his cellphone. PO Monegro denied that § 87(2)(b) was doing anything that would justify an arrest; he said he would only have issued him a summons in this situation.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unfounded**.

Allegation B: Police Officer Manuel Monegro spoke discourteously to § 87(2)(b)

Allegation C: Police Officer Manuel Monegro threatened § 87(2)(b) **with the use of force.**

Allegation D: Police Officer Manuel Monegro made remarks to § 87(2)(b) **based upon the gender of** § 87(2)(b)

In § 87(2)(b)'s in-person interview, he stated that after he had made a U turn and waited at the traffic light facing Sheridan Avenue, he called § 87(2)(b) to explain what was going on (BR 02). While doing so, PO Monegro got out of the patrol vehicle, puffed out his chest, and began acting tough while smoking from a vaporizer. He said to § 87(2)(b) "Stop talking all that shit, and get out. You're so pussy." and, "Get out of the car or you'll see what happens." § 87(2)(b) responded, "You're talking all this shit because you're in your uniform. If I come out of the car something is gonna happen to me. You could either shoot me or do something."

§ 87(2)(b) could not recall precisely what PO Monegro said to his brother, but remembered him using the words “pussy,” “bitch,” and the phrase, “fuck you.” (BR 03) When asked directly, § 87(2)(b) denied that the officer threatened his brother with force. However, § 87(2)(b) remembered PO Monegro asking his brother, “Why don’t you get out of the car?” In response to this, § 87(2)(b) began to get out of the car, but § 87(2)(b) convinced him that it was not worth it; § 87(2)(b) did not open his door. Additionally, § 87(2)(b) recalled his brother using profanity with PO Monegro while they were arguing and hitting his hand on the steering wheel in an angry manner.

During the interaction at the traffic light, PO Antwi recalled standing on the passenger side of the patrol vehicle, and PO Monegro stood approximately 7 feet away from § 87(2)(b) on the driver’s side of the patrol vehicle (BR 04). § 87(2)(b) was staring at the officers. PO Antwi did not recall whether § 87(2)(b) made a phone call during the incident. PO Monegro did not step toward § 87(2)(b)’s vehicle. PO Antwi said that § 87(2)(b) began escalating the situation after letting the traffic light run through two or three cycles. PO Antwi said his partner told § 87(2)(b) “You gotta go,” but denied hearing him say “Stop talking all that shit, and get out,” or “Get out of the car or you’ll see what happens.” § 87(2)(b) responded, “Oh you guys think you’re tough because you’re in uniform.” PO Antwi also said he was not paying attention to what was specifically said between PO Monegro and § 87(2)(b) and did not recall PO Monegro using profanity or the word “bitch” during the interaction.

PO Monegro recalled § 87(2)(b) driving back toward the intersection of East 161st Street and Sheridan Avenue very slowly, “Like 2 miles per hour,” after making the U turn. PO Monegro also recalled that after § 87(2)(b) had reached the traffic light at Sheridan Avenue, he was playing on his phone and looking at the officers for approximately 5 to 6 minutes (BR 05). PO Monegro said that § 87(2)(b) remained calm during the entire incident; he did not use profanity or yell at either of the officers. However, PO Monegro said he was standing approximately 10 to 15 feet away from § 87(2)(b)’s car, and they were shouting at each other due to the distance. PO Monegro said he was asking § 87(2)(b) whether he was going to move because a bus was trying to come through, and told him that he could give him a summons for blocking traffic or using his cellphone. He said § 87(2)(b) responded, “I’m not gonna be afraid of you guys,” and was laughing. PO Monegro said that during their interaction he did not say, “Get out, or you’re gonna see what happens.” Instead, PO Monegro said he asked § 87(2)(b) “How are we gonna do this?” By this, PO Monegro meant whether § 87(2)(b) was going to leave the scene, or if PO Monegro was going to issue him a summons. PO Monegro further denied saying, “Stop talking all this shit, and get out you pussy;” he denied using the words “bitch” or “pussy” and the phrase “fuck you” at any point during the interaction.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B-D** be closed as **unsubstantiated**.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date